gross value of the output at point of shipment to market or an overriding royalty interest which when added to any other overriding royalty interest exceeds that percentage, excepting that where an interest in the leasehold, or operating agreement is assigned, the assignor may retain an overriding royalty interest in excess of the above limitation if he shows to the satisfaction of the Director, Bureau of Land Management, that he has made substantial investments for improvements on the land covered by the assignment.

(Sec. 32, 41 Stat. 450; 30 U. S. C. 189)

OSCAR L. CHAPMAN,
Secretary of the Interior.

JULY 28, 1951.

[F. R. Doc. 51-8906; Filed, Aug. 2, 1951; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 737]

ALASKA

WITHDRAWING PUBLIC LAND FOR CLASSIFICATION

By virtue of the authority contained in the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C. 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public land in Alaska is hereby withdrawn from settlement, location, sale, and entry, for classification:

Beginning at a point from which the southeast corner Sec. 32, T. 17 S., R. 7 W., F. M. bears approximately S. 66°23′ W., 2,460 feet, and the northeast corner Sec. 32, T. 17 S., R. 7 W., F. M. bears approximately N. 27°37′ W., 4,870 feet, thence by metes and bounds:

N. 19°50′ E., 1,820 feet.
S. 89°39′30″ E., 2,020 feet to west right-of-way line of Paxon-McKinley Park Road.
S. 0°20′30″ W., 2,370 feet along the right-of-way line.
Southwesterly, 350 feet along the right-of-way line on a curve to the P. O. T. of the north limit of right-of-way of the Cantwell Road.
N. 70°10′ W., 2,510 feet along the north right-of-way line of the Cantwell spur of the Paxon-McKinley Park Road to point of beginning.

The tract described contains approximately 120 acres.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JULY 28, 1951.

[F. R. Doc. 51-8905; Filed, Aug. 2, 1951; 8:45 a. m.]

[Public Land Order 738]

ALASKA

RESERVING LANDS FOR THE USE OF THE DEPARTMENT OF THE AIR FORCE FOR MILITARY PURPOSES: PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 7309 WITHDRAWING PUBLIC LANDS IN AID OF LEGISLATION

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Air Force for military purposes:

FAIRBANKS MERIDIAN

T. 1 S., R. 1 W.,
Sec. 14, SW¼ and S½SE¼.

The areas described aggregate 240 acres.

Executive Order No. 7309 of February 28, 1936, temporarily withdrawing lands in aid of legislation, is hereby revoked so far as its affects the above-described lands.

It is intended that the lands described above shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JULY 28, 1951.

[F. R. Doc. 51-8903; Filed, Aug. 2, 1951; 8:45 a. m.]

[Public Land Order 739]

ARIZONA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE ARMY IN CONNECTION WITH THE ACTIVITIES OF THE ARIZONA NATIONAL GUARD

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Army in connection with the activities of the Arizona National Guard:

GILA AND SALT RIVER MERIDIAN

T. 8 S., R. 21 W., unsurveyed,
Secs. 27 and 34.

The areas described aggregate 1,280 acres.

This order shall take precedence over but not otherwise affect the order of March 14, 1929, of the Secretary of the Interior withdrawing lands for reclamation purposes, so far as such order affects the above-described lands.

It is intended that the lands described shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JULY 28, 1951.

[F. R. Doc. 51-8907; Filed, Aug. 2, 1951; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

PART 10—STEAM ROADS: UNIFORM SYSTEM OF ACCOUNTS

MISCELLANEOUS AMENDMENTS

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 26th day of July A. D. 1951.

The matter of modifying the "Uniform System of Accounts for Steam Railroads, Issue of 1943," being under consideration pursuant to section 20 of the Interstate Commerce Act, as amended (24 Stat. 386, 54 Stat. 917, 49 U. S. C. 20 (3)); and,

It appearing, that a notice dated June 18, 1951 was served on all steam railroads subject to the act, to the effect that the modifications which are set forth below and made a part hereof had been approved, such notice also being published in the FEDERAL REGISTER on June 28, 1951 (16 F. R. 5256) pursuant to the provisions of section 4 of the Administrative Procedure Act; and,

It further appearing, that although the notice provided that objections to such modifications could be filed on or before July 20, 1951, no representations of any kind were received during the prescribed period; *It is ordered*, That:

(1) *Effective date.* The attached modifications shall become effective September 1, 1951.

(2) *Notice.* A copy of this order including the attached modifications shall be served on every steam railroad subject to the act and on every trustee, receiver, executor, administrator, or assignee of any such steam railroad, and notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

By the Commission, Division 1.

[SEAL] W. P. BARTEL,
Secretary.

1. In § 10.503 *Hire of freight cars; credit balance*, without altering the title of or notes to the account, cancel the text and substitute the following for it:

§ 10.503 *Hire of freight cars; credit balance.* This account shall include, except as provided in the texts of accounts 509, "Income from lease of road and equipment," and 542, "Rent for leased roads and equipment," the net credit balance of (a) amounts receivable accrued for the use of the accounting company's freight cars leased or interchanged, and (b) amounts payable accrued for the use of the freight cars of others, leased or interchanged. (See § 10.05–2 *Leased road and equipment; depreciation.*)

2. In § 10.504 *Rent from locomotives*, without altering the title of or note to the account, cancel the text and substitute the following for it:

§ 10.504 *Rent from locomotives.* This account shall include, except as provided in the text of account 509, "Income from lease of road and equipment,"